

CONTRACT OF LEASE PRIVATE ROOM — SHORT TERM LEASE KNOWN TO ALL MEN BY THESE PRESENTS: This CONTRACT OF LEASE is made and executed in the City of Makati, this ____ day of _____, by and between: **FIRST JRAC PARTNERSHIP CO.**, a general partnership duly organized and existing under and by virtue of the laws of the Republic of the Philippines, with principal office at 9431 Magallanes St., Guadalupe Nuevo, Makati City, represented herein by its General Partner, **JOANNE ONG**, hereinafter referred to as the LESSOR; — and — _____, of legal age, Filipino, with postal and residential address at _____, hereinafter referred to as the LESSEE; WITNESSETH: That WHEREAS, the LESSOR is the owner of a residential establishment known as **LILYCREST GIL PUYAT**, located at #7 Gil Puyat Ave. corner Marconi St., Makati City; WHEREAS, the LESSOR agrees to lease to the LESSEE a PRIVATE ROOM accommodation known as Room _____, Bed/Slot No. _____ (the “LEASED PREMISES”) within the said establishment, and the LESSEE is willing to lease the same for a limited time or period; NOW THEREFORE, for and in consideration of the foregoing premises, the LESSOR leases unto the LESSEE and the LESSEE hereby accepts from the LESSOR the LEASED PREMISES, subject to the following: **TERMS AND CONDITIONS**

SECTION 1 – PURPOSE. The leased premises shall be used exclusively by the LESSEE for residential purposes only and shall not be diverted to other uses. It is hereby expressly agreed that if at any time the premises are used for other purposes, the LESSOR shall have the right to rescind this Contract, without prejudice to its other rights under the law.

SECTION 2 – DURATION. The lease of the private room shall run for a period of _____ (____) months, from _____ to _____. Being a **SHORT TERM LEASE**, the period shall be not less than one (1) month and less than six (6) months.

SECTION 3 – RENTAL RATE. The regular and basic monthly rental fee is Php 16,000.00, exclusive of any tax. The LESSOR, however, shall grant a promo rate or discount of ten (10%) percent, which brings the basic monthly rental fee to Php 14,400.00, exclusive of any tax and net of discount. The said rental fee is inclusive of the use of the leased premises and the room’s own private toilet and bath and kitchenette, as well as the common lounge area on the same floor, subject to the House Rules and Regulations (**ANNEX “A”**) provided by the LESSOR. The leased premises are fully furnished with a double-decked bed and mattress, an air conditioning unit, table, chair, cabinet, and shower water heater. The electricity consumption of the LESSEE, which is not part of the rental fee, shall be billed on a monthly basis. All payments shall be paid directly to the LESSOR through bank deposit or transfer, supported by an official acknowledgment receipt and/or service invoice. Delay in the payment of the rental fee or electricity consumption for three (3) consecutive months shall be ground for the LESSOR to terminate this Contract of Lease. In such case, the LESSEE shall voluntarily vacate the leased premises, surrender the key to the LESSOR, and shall no longer be allowed to access the leased premises except to retrieve his or her personal belongings.

SECTION 4 – DEPOSITS AND ADVANCES. Upon moving in, the LESSEE shall pay one (1) month advance rent in the amount of Php 14,400.00, covering the period of _____ to _____, and one (1) month security deposit in the amount of Php 14,400.00. The reservation fee of Php 2,000.00 paid by the LESSEE shall be credited as partial payment for the said amounts. The LESSOR agrees to refund the deposit not later than thirty (30) days after the termination of this Contract, less payment, if any, for unpaid bills of electricity or other utility charges, failure to return the key (Php 1,000.00), and the cost of damages to the leased premises occasioned by the LESSEE’s fault or negligence. This deposit, which shall be non-interest bearing, cannot be applied by the LESSEE to any unpaid rent or to the last month’s rental, and shall be kept intact throughout the life of this Contract. Furthermore, if the LESSEE vacates the premises before the expiration of the period of lease, the full amount of the security deposit shall be forfeited in favor of the LESSOR.

SECTION 5 – FORCE MAJEURE. If the whole or any part of the leased premises shall be destroyed or damaged by fire, flood, lightning, typhoon, earthquake, storm, riot, or any other unforeseen disabling cause or act of God, as to render the leased premises during the term substantially unfit for the use and occupation of the LESSEE, then this Contract may be terminated without compensation by either the LESSOR or the LESSEE by notice in writing to the other party.

SECTION 6 – LESSOR’S RIGHT OF ENTRY. The LESSOR or its authorized representative shall, after giving due notice to the LESSEE, have the right to enter the premises in the presence of the LESSEE or his or her representative at any reasonable hour to examine the same, make repairs therein, undertake the operation and maintenance of the building, exhibit the leased premises to prospective lessees, or for any other lawful purpose which it may deem necessary.

SECTION 7 – EXPIRATION OF LEASE. At the expiration of the term of this lease or the cancellation thereof, as herein provided, the LESSEE shall promptly deliver to the LESSOR the leased premises with all corresponding keys, in as good and tenantable condition as the same is now, ordinary wear and tear excepted, devoid of all occupants, movable furniture, articles, and effects of any kind.

IN WITNESS WHEREOF, both parties herein have affixed their signatures on the date and place first above written. LESSEE **FIRST JRAC PARTNERSHIP CO.** By: **JOANNE ONG** General Partner – LESSOR SIGNED IN THE PRESENCE OF:

ACKNOWLEDGMENT REPUBLIC OF THE PHILIPPINES) _____) S.S. BEFORE ME, this ____ day of _____, personally appeared the above-named parties, all known to me and to me known to be the same persons who executed the foregoing instrument, and who acknowledged to me that the same is their free and voluntary act and deed. This instrument, consisting of _____ (____) page/s, including the page on which this acknowledgment is written, has been signed on each and every page thereof by the concerned parties and their witnesses, and sealed with my notarial seal. WITNESS MY HAND AND SEAL, on the date and place first above written. Doc. No. _____; Page No. _____; Book No. _____; Series of _____.